



File No.: EXP202209157

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 19, 2022. The complaint is directed against TELEFÓNICA MÓVILES ESPAÑA, S.A. with NIF A78923125 (hereinafter, the respondent or "TME"). The reasons for the complaint are as follows:

The complainant states that after receiving a text message on his mobile from the respondent entity, he was informed of a change to his tariff, without his consent.

In this regard, after visiting a physical store of "TME," he was confirmed the modification of the tariff of his mobile line, which is associated with his ID number, except that two letters appear at the beginning of the numbering of this.

Along with his complaint, he provides a police report regarding these facts dated July 14, 2022, a copy of his contract, and emails exchanged with the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on September 7, 2022, as noted in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: In accordance with Article 65 of the LOPDGDD, when a complaint is submitted to the Spanish Agency for Data Protection (hereinafter, AEPD), it must evaluate its admissibility for processing, notifying the complainant of the decision on admission or inadmissibility within three months from the date the complaint was received by this Agency. If, after this period, such notification does not occur, it will be understood that the processing of the complaint continues in accordance with the provisions of Title VIII of the Law.

This provision also applies to the procedures that the AEPD must process in exercising the powers attributed to it by other

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laws. In this case, taking into account the aforementioned and that the complaint was submitted to this Agency on July 19, 2022, it is communicated that your complaint has been admitted for processing on October 19, 2022, after three months have passed since it was received by the AEPD.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

A request was made to the party being complained against on February 28, 2023, and on March 17, 2023, a letter was received by this Agency sent by

“TME” stating that:

“The complainant contracted the convergent service “Movistar Conecta Max,” which includes fixed telephone, mobile, and internet access, on March 19, 2021, indicating as associated lines ***TELEFONO.1 and ***TELEFONO.2. For relevant purposes, a copy of the aforementioned contract is attached as Document Annex 2.

On March 23, 2021, when requesting the portability of the indicated mobile line for the “Movistar Conecta Max” service and signing the corresponding contract with the portability request, the complainant indicated the name, linked to their ID, as “B.B.B.” For relevant purposes, a copy of the aforementioned contract is attached as Document Annex 3.”

It is verified that the signature on the contract in Annex 2 and the four signatures on the contract in Annex 3 are apparently the same and that the contract in Annex 3 contains the customer’s details with the name B.B.B., address, the same NIF as the complainant, and the donor operator (***EMPRESA.1) of the complainant’s mobile phone number, along with the bank account details.

It is verified that the copy of the portability request contract provided by the complainant dated March 19, 2021, includes their name and surname, NIF, address, email, and indicates that the contracted service is Portability for Movistar Conecta Max Fiber, regarding a fixed phone number from the donor operator ***EMPRESA.2 (brand of ***EMPRESA.1 since XXXX) along with the hidden bank account details, while the copy of the contract in Annex 2 provided by the party being complained against only includes name and surname, NIF, email, and indicates that the contracted service is Movistar Conecta Max with the same fixed phone number and also the complainant’s mobile phone number.

“On June 7, 2022, the mobile line migrated to a mobile-only contract, as a result of the cancellation of the Movistar Conecta Max that the complainant had subscribed to. In this regard, when the mobile line was detached from the fixed line, the mobile line recovered the data from the original contract subscribed with the portability request that had been indicated by the Complainant, thus remaining with their ID and the name “B.B.B.”, until the time of the present complaint.”

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It is verified that the respondent has not provided a copy of the contract dated June 7, 2022, for migration to mobile-only service.

"Regarding this, the respondent denies the information that may have been transmitted to them in a physical store by our sales agents, but we can confirm that it is not recorded on our part, despite what is indicated in the complaint letter, that the customer has contacted Telefónica or the Office of the Data Protection Delegate to exercise a right to rectify data.

Notwithstanding the above, once we became aware of the present complaint through the AEPD, we proceeded to effectuate the right to rectify the name data, thus resolving the present controversy. Although it is not recorded on our part that the physical store indicated to the complainant that it is not possible to rectify personal data, the necessary internal instructions have been issued from the Office of the Data Protection Delegate to remind sales agents that requests for the exercise of data rectification must be channeled through the designated channels for such purposes."

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FIFTH: According to the report collected from the AXESOR tool, the entity TELEFÓNICA MÓVILES

ESPAÑA, S.A. is a large company established in 1988, with a business volume of 4,406,624,000 euros in 2021.

SIXTH: On July 21, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the respondent requested an extension of the deadline to submit allegations, which was granted, and on August 14, 2023, they submitted a written statement of allegations in which, in summary, they stated that: << specifically, this party does not agree with what is stated in the Second Fact regarding the transfer of the initial complaint dated July 14, 2022, along with the police report dated July 14, 2022, the copy of their contract, and emails exchanged with this party, without a response being provided to the information request by Telefónica. Regarding this point, upon reviewing our systems, no notification has been found in this regard despite the AEPD indicating that it was received by this party on September 7, 2022, for which reason we request that the AEPD review the case, as otherwise, this party could have been left defenseless.

Regarding the alleged lack of legality of the processing concerning a supposed modification of the ownership of the line. In this respect, it should be noted that the signatures are the same on all the contracts provided, and it is the client themselves who, on March 23, 2021, when requesting the portability of the mobile line.

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indicated for the service "Movistar Conecta Max," and to sign the corresponding contract with the portability request, indicates as the name, and linked to their DNI, that of "B.B.B."

Due to this fact, when on June 7, 2022, the mobile line migrates to a mobile-only contract, resulting from the cancellation of the Movistar Conecta Max that the Claimant had subscribed to, the mobile line recovered the data from the original contract signed in the portability request, thus the line remained associated with their DNI and the name "B.B.B.," which is mistakenly the one the customer had indicated in the original portability request.

Therefore, in no case has there been a change of line ownership, but merely an error in the name derived from the data indicated in the initial portability request.

That is to say, in this case, there has been no unlawful processing of data modifying the ownership of the line, but rather due to the error made by the customer when signing the contract, the name that was recovered from the system was the one indicated by the claimant in the portability request but with the correct DNI, a fact that was immediately rectified once knowledge of the claim before the AEPD was obtained.

In conclusion and based on the above, neither has there been a modification of the rate nor a change of line ownership without the consent of the owner in the present case. On the contrary, Telefónica has acted at all times in accordance with the Conditions subscribed by the Customer and in accordance with the data provided by them, processing their data based on the execution of the contract of which the customer is a party, and therefore, the typical action of lack of lawfulness of the processing has not occurred.

In the sanctioning field, for a conduct to be reproachable, it must be typical, unlawful, and culpable. Therefore, once the facts have been analyzed, this party considers that the principle of typicality is being violated since the conduct carried out by Telefónica is not subsumable under any of the provisions whose infringement is imputed. We recall that, in this case, the Agency considers Article 6.1 of the GDPR (conditions under which processing will be considered lawful) to be violated and classifies the infringement according to Article 83.5 GDPR. However, as stated in the Facts section of this document, the action cannot be considered typical. This party confirms that the legal basis that

legitimizes the processing of the claimant's personal data is none other than the execution of the contract, that is, the legitimizing basis contemplated in section b) of the aforementioned Article 6.1: "the processing is necessary for the performance of a contract in which the data subject is a party or for the application at the request of the data subject of pre-contractual measures."

That is to say, in this specific case, the processing of personal data is carried out for the purpose of managing the change of rate of the mobile line in accordance with the Particular Conditions of Contracting of the Conecta Max Service subscribed by the customer and in accordance with the personal data provided by them at the time of contracting.

Therefore, the processing is in any case lawful. For the reasons stated, we understand that there is no basis for imputing to my represented party a violation of Article 6.1 of the GDPR, since the processing of those data by Telefónica is necessary.

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to manage the contractual relationship with the Claimant and, therefore, Telefónica had sufficient legitimizing grounds, thus the typical action does not result, and the present sanctioning file should be archived.

All of the above only serves to demonstrate that the conduct followed by Telefónica can in no case be considered typical, given that the conduct carried out by Telefónica is not subsumable under the provision whose infringement is alleged.

Moreover, it cannot be considered unlawful either. Telefónica believes that it has acted at all times in good faith and with a founded belief excluding any culpability. It should be noted that the unlawfulness of the conduct, a constitutive element of any administrative offense, requires in its formal aspect that there is an opposition between the behavior and the norm infringed.

Without prejudice to the preceding allegations regarding the absence of typicality and unlawfulness, and in case the Agency does not agree to archive the present sanctioning file despite the arguments put forward, this party wishes to express its disagreement with the Agreement, when it states as a circumstance to aggravate the sanction the following: "The evident link between the business activity of the accused and the processing of personal data of clients or third parties (Article 83.2.k of the GDPR in relation to Article 76.2.b of the LOPDGDD)."

In any case and in conclusion, this party considers that taking into account the specific case and that in no case have the client's data been processed unlawfully, thus not meeting the principle of typicality, the present sanctioning file should be archived.

It is declared that there is no responsibility on the part of Telefónica for the alleged infringement attributed to it in this procedure, ordering the archive of the present sanctioning file. Subsidiarily, and in case the present sanctioning file is not archived, the initially proposed sanction should be reduced in virtue of the mitigating factors stipulated in Article 83 of the GDPR.

EIGHTH: On September 12, 2023, the instructor of the procedure agreed to carry out the following evidence: <<1. The complaint filed by A.A.A. and its documentation, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigation actions that are part of the procedure AI/00050/2023 are reproduced for evidentiary purposes. 2. Likewise, the allegations to the initiation agreement of the referenced sanctioning procedure, presented by TELEFÓNICA MÓVILES ESPAÑA, S.A.U., and the accompanying documentation are reproduced for evidentiary purposes.>>

NINTH: On October 16, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction TELEFÓNICA MÓVILES ESPAÑA, S.A. with NIF A78923125, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of 70,000 euros (seventy thousand euros).

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TENTH: Once the resolution proposal was notified in accordance with the established rules in the LPACAP, the party being claimed submitted a written statement of allegations on October 30, 2023, in which, reaffirming the statements made in the Initiation Agreement, it states: "The complete contracts and an extract of the first pages containing personal data are once again provided.

Well, it is the client who, on March 23, 2021, at the time of requesting the portability of the indicated mobile line for the service "Movistar Conecta Max," and signing the corresponding contract with the portability request, indicates as the name, linked to their ID, that of "B.B.B."

Taking the above into account, the portability was granted according to the data provided by the client. Due to this fact, when on June 7, 2022, the mobile line migrated to a standalone mobile contract, resulting from the cancellation of the Movistar Conecta Max that the Claimant had subscribed to, it recovered the data that appeared in that contract, thus the line remained associated with their ID and the name "B.B.B.," which is the name the client had indicated in the original portability request.

Therefore, in no case has there been a change of ownership of the line nor has their line been associated with another ID or passport, but rather a mere error in the name derived from the data indicated in the initial portability request - in this regard, it should be emphasized that the ID is correctly stated.

That is to say, in this case, there has not been an unlawful processing of data modifying the ownership of the line, but rather the name that was retrieved from the system once the mobile service was unbundled from the convergent service was the one indicated by the claimant in the portability request, a fact that was immediately rectified once the client's complaint was known.

There is no lack of lawfulness in the processing regarding the modification of the mobile rate since this is contemplated in the contract of which the claimant is a part:

The convergent service "Movistar Conecta Max" contracted by the Claimant includes fixed telephone, mobile, and internet access services in a packaged form. This service aims, as described in clause two of the contract provided as Annex 1: "2. CONTRACTING OF MOVISTAR CONECTA MAX. The Client, upon contracting Movistar Conecta Max, will have a fixed telephone line with broadband (ADSL, Fiber, or Movistar Internet Radio Service - hereinafter Fixed Radio Access - if there is no coverage of the previous ones and it is possible to install it as an alternative) with Movistar, and a mobile line under contract operated by Telefónica Móviles España, S.A.U., whose management will be assumed by Movistar (hereinafter, "Conecta Max Mobile Line").

Therefore, it is an essential requirement to be able to enjoy the package to always have a fixed line with internet access and a mobile line associated with the service. If this is not the case, this service cannot be enjoyed, and in those cases where the cancellation of one of the bundled services is requested, the package would be broken, coming into effect clause 6.2 of the contract, which stipulates, applied to the specific case, that in those cases where the cancellation of the fixed components is requested, but not...

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of the mobile -something that occurred in this case in which the client requested the cancellation of fixed services-, the following will happen: "6.2. Variations due to cancellation.

When the Client cancels Movistar Conecta Max, but not the various services that compose it (fixed telephone line, ADSL/Fiber/Fixed Radio Access, TV and/or mobile lines), or after contracting Movistar Conecta Max, if the effective activation does not occur, the services that remain active will continue to be provided, in accordance with their contractual conditions and the Catalog prices indicated below, or those that may have replaced them, which can be consulted at www.movistar.es or through the Personal Attention Number 1004 or Professional Response 1489.

For the above reasons, and given that the contract signed by the Claimant includes the automatic repositioning of the rate -a contract that the client expressly accepted and signed, thus providing their

consent-, there is no additional contract regarding the rate change that this party must provide, so the comment made by the Agency regarding "it is verified that the claimed party has not provided a copy of the contract dated June 7, 2022, for migration to mobile only" is incorrect, since the initially signed contract already establishes this possibility, and the signature of an additional contract is not necessary.

In conclusion, this party has lawfully processed the Claimant's data, with the legitimizing basis being the contract of which the Claimant was a part and which they signed, accepting the modification of the rate in case of cancellation of fixed services.

In conclusion, and for the above reasons, there has been neither a modification of the rate in this case nor a change of ownership of the line without the consent of the owner.

For the reasons stated, we understand that there is no basis for attributing to my represented party a violation of Article 6.1 of the GDPR, since the processing of such data by Telefónica is necessary to manage the contractual relationship with the Claimant and, therefore, Telefónica had sufficient legitimizing basis, thus the typical action does not apply, and the present sanctioning file should be archived.

All of the above only evidences that the conduct followed by Telefónica can in no case be considered typical, given that the conduct carried out by Telefónica is not subsumable under the provision whose violation is attributed. Furthermore, it cannot be considered unlawful. Telefónica believes that it has acted at all times in good faith and with an exclusive belief excluding any culpability.

Thus, the unlawfulness of the conduct is rejected based on the arguments that the processing of personal data for the modification of the mobile rate is carried out in accordance with the Particular Conditions signed by the Claimant and in accordance with the data provided by them, with the legitimizing basis for the processing being the execution of the contract of which the Claimant is a part. And, in any case, once Telefónica was made aware of the possible error made by the Claimant in their request.

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Regarding portability, the data was immediately corrected. Therefore, as this is the case, it cannot be said that there was a lack of due diligence in any case. For this reason, the present sanctioning file should be archived. Neither has a tariff modification been made nor a change of line ownership without the consent of the holder. It is a power of Telefónica specifically contemplated in the contract signed by the Claimant. In any case, if the Agency does not agree to archive the present sanctioning file, this party wishes to express its disagreement with the fact that neither the specific case we are discussing nor any of the mitigating circumstances mentioned in the allegations to the initiation Agreement are taken into account, and that, on the contrary, two supposed aggravating factors are applied. Therefore, this party considers that the Proposal for resolution violates the principle of proportionality in the imposition of sanctions. Starting with the aggravating factors, regarding "the evident link between the business activity of the defendant and the processing of personal data of clients or third parties (Article 83.2.k of the GDPR in relation to Article 76.2.b of the LOPDGDD)," firstly, to the extent that this party does not consider that there has been a lack of attention or obstruction of the Agency's investigative powers, we cannot consider that this aggravating factor is present either. On the other hand, regarding the consideration of "the severity of the infringement taking into account the scope of the processing operation, a circumstance provided for in Article 83.2.a) GDPR" as an aggravating factor, the sanction would also not be individualized to the specific case. All the referenced points provide more than sufficient grounds for the Agency to proceed with the reduction of the sanction. For all the above, it is requested that the absence of responsibility on the part of Telefónica for the alleged infringement attributed to it in this procedure be declared, ordering the archiving of the present sanctioning file, and that, subsidiarily and in the event that the declaration of nullity of the sanctioning resolution is not made, or with the archiving of the present sanctioning file, the initially proposed sanction be reduced by virtue of the mitigating factors stipulated in Article 83 of the GDPR.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST. - The claimant filed a complaint with this Agency on July 19, 2022, stating that TME has modified both its telephone tariff and the ownership of its telephone line without its consent.

SECOND. - It is recorded in the file that the defendant does not substantiate the allegations made to this Agency, on March 17, 2023, that: "on March 23, 2021, when requesting the portability of the indicated mobile line for the service 'Movistar Conecta Max', and signing the corresponding contract with the request for portability, the Claimant indicated as the name, linked to their ID, 'B.B.B.'. For the appropriate purposes, a copy of the aforementioned contract is attached as Document Annex 3. Subsequently, on June 7, 2022, the mobile line migrates to a mobile-only contract, resulting from the cancellation of the Movistar Conecta Max that the Claimant had subscribed to. In this sense, when the mobile line is detached from the fixed line, the mobile line recovers the data from the original contract signed with the portability request that had been indicated by the Claimant, thus remaining with their ID and the name 'B.B.B.' until the time of the present complaint."

THIRD. - It is recorded in the file that the defendant provides a contract dated March 19, 2021, which contains the personal data of the contracting party (name, surname, address, etc.) and two contracted lines, one fixed and one mobile.

FOURTH. - It is recorded in the file that the defendant provides a contract dated March 23, 2021, in which a third party is listed as the holder of the Claimant's mobile line and a different address.

FIFTH. - It is confirmed that TME has proceeded to effectively exercise the right to rectify the name data.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

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Unfulfilled Obligation

Article 6 of the GDPR, "Lawfulness of processing," states in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for

the implementation at the request of the data subject of pre-contractual measures;

c) processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child. The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In the present case, the complainant states that TME modified both their telephone rate and the ownership of their line without their consent.

TME, in its response to this Agency, dated March 17, 2023, states that:

“On March 23, 2021, at the time of requesting the portability of the indicated mobile line for the service ‘Movistar Conecta Max,’ and signing the corresponding contract with the request for portability, the Complainant indicated as the name, linked to their ID, ‘B.B.B.’ For the appropriate purposes, a copy of the aforementioned contract is attached as Annex 3. Subsequently, on June 7, 2022, the mobile line migrated to a mobile-only contract, resulting from the cancellation of the Movistar Conecta Max that the Complainant had subscribed to. In this sense, when the mobile line was disconnected from the fixed line, the mobile line recovered the data from the original contract signed with the portability request that had been indicated by the Complainant, thus remaining with their ID and the name ‘B.B.B.’, until the time of the present complaint.”

Well, in the analyzed case, the diligence employed by the respondent is called into question, given that in the contract provided by TME dated March 19, 2021, the complainant is listed as the holder associated with two telephone lines ***TELEFONO.2 and ***TELEFONO.1, with an address in ***LOCALIDAD.1, but on March 23, 2021, it occurred without consent from the party.

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Claimant requests a change in the ownership of the number ***TELEFONO.2 by TME, with a new contract being established in the name of a third party, but using the claimant's ID number, and with an address in Madrid, which resulted in a change of tariff.

In this regard, Recital 40 of the GDPR states:

“(40) In order for the processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, whether in this Regulation or under another Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract.”

Therefore, it is considered that there is evidence that the processing of data of the claimant party subject to this complaint has been carried out without a legitimate basis as outlined in Article 6 of the GDPR.

The GDPR applies to personal data, which is defined as “personal data”: any information relating to an identified or identifiable natural person (“the data subject”); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

The documentation in the file evidences that the respondent violated Article 6.1 of the GDPR, as it processed the personal data of the claimant party without any legal justification for doing so.

Thus, having established that the respondent processed the personal data of the claimant party, who denies consent to the processing, and since a manager of that operator changed the ownership of the

claimant's mobile line without legitimacy for doing so, it is deemed that the facts constitute a violation of Article 6.1 of the GDPR, an infringement classified under Article 83.5 of the aforementioned Regulation 2016/679.

Respect for the principle of lawfulness, which is at the essence of the fundamental right to the protection of personal data, requires that it be established that the data controller exercised the necessary diligence to substantiate this point. If this is not done—and if this Agency, which is responsible for ensuring compliance with the regulations governing the right to the protection of personal data, does not require it—the result would be to empty the principle of lawfulness of its content.

Hence, TME does not substantiate a legitimate basis for the processing of the claimant party's data. In relation to the declaration of the full nullity of the Proposal for resolution, it seems appropriate to bring to mind the STC 78/1999, of April 26, which in its Legal Basis 2 states: "Thus, according to reiterated constitutional doctrine summarized in Legal Basis 3 of STC 62/1998, 'the estimation of a...'

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Amparo appeal due to the existence of violations of procedural norms 'does not simply result from the appreciation of the eventual infringement of the right due to the existence of a more or less serious procedural defect, but it is necessary to demonstrate the effective concurrence of a state of material or real defenselessness' (STC 126/1991, legal foundation 5; STC 290/1993, legal foundation 4). For a defenselessness with constitutional relevance to be considered, which places the interested party outside any possibility of alleging and defending their rights in the process, it is not enough to have a merely formal violation; it is necessary that this formal infringement results in a material effect of defenselessness, an effective and real detriment to the right of defense (STC 149/1998, legal foundation 3), with the consequent real and effective harm to the affected parties (SSTC 155/1988, legal foundation 4, and 112/1989, legal foundation 2).

In light of the above, the request of the respondent for the annulment of the administrative sanctioning procedure in question must be rejected.

Regarding the non-compliance with the principle of proportionality, the GDPR expressly provides for the possibility of gradation, through the provision of fines that can be modulated, taking into account a series of circumstances of each individual case. These circumstances have been considered when setting the sanction.

In the present sanctioning procedure, the sanction is imposed because "TME" made a tariff modification and a change of ownership of the line without the consent of the owner, and for this reason, Article 6.1 of the GDPR is invoked.

As for the responsibility of "TME", it should be noted that, in general, Telefónica processes its customers' data under the provisions of Article 6.1 b) of the GDPR, as it is considered necessary for the execution of a contract in which the interested party is a party or for the application at their request of pre-contractual measures. In other cases, it bases the legality of the processing on the grounds provided in Article 6.1 a), c), e), and f) of the GDPR.

The Constitutional Court indicated in its Judgment 94/1998, of May 4, that we are dealing with a fundamental right to data protection, which guarantees the individual control over their data, any personal data, and over its use and destination, to prevent the illicit trafficking of the same or harm to the dignity and rights of the affected parties; thus, the right to data protection is configured as a citizen's faculty to oppose the use of certain personal data for purposes other than those that justified its acquisition.

For its part, in Judgment 292/2000, of November 30, it considers it as an autonomous and independent right that consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party can collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose that possession or use.

Regarding Telefónica's conduct, it is considered to respond to the title of fault. As a large-scale holder of personal data, therefore, accustomed or specifically dedicated to the management of personal data of the

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clients, must be especially diligent and careful in their handling.

It is Recital 74 of the GDPR that states: The responsibility of the data controller must be established for any processing of personal data carried out by themselves or on their behalf. In particular, the controller must be obliged to apply appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons. Likewise, Recital 79 states: The protection of the rights and freedoms of data subjects, as well as the responsibility of controllers and processors, also regarding the supervision by the supervisory authorities and the measures adopted by them, requires a clear attribution of responsibilities under this Regulation, including cases where a controller determines the purposes and means of processing jointly with other controllers, or where the processing is carried out on behalf of a controller.

In light of the available evidence, it is estimated that the conduct of the respondent violates Article 6.1 of the GDPR, constituting the infringement typified in Article 83.5.a) of the aforementioned Regulation 2016/679. TME has requested in its written allegations, in a subsidiary manner, that this Agency agrees to archive the procedure.

The principle of culpability governs in sanctioning Administrative Law (Article 28 of Law 40/2015, on the Legal Regime of the Public Sector, LRJSP), whereby the subjective or culpability element is an indispensable condition for the emergence of sanctioning responsibility. Article 28 of the LRJSP, "Responsibility," states: "1. Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous estates, that are responsible for the same by way of intent or negligence, may be sanctioned for acts constituting an administrative infringement."

In light of this provision, sanctioning responsibility can be demanded on the basis of intent or negligence, with mere non-compliance with the duty of care being sufficient in the latter case. The Constitutional Court, among others, in its ruling STC 76/1999, has declared that administrative sanctions share the same nature as criminal ones, being one of the manifestations of the State's *ius puniendi*, and that, as a requirement derived from the principles of legal certainty and criminal legality enshrined in Articles 9.3 and 25.1 of the CE, their existence is essential for imposing them.

Regarding the culpability of legal entities, it is appropriate to cite STC 246/1991, December 19, 1991 (F.J. 2), according to which, concerning legal entities, the subjective element of culpability must necessarily be applied differently than it is for natural persons and adds that "This distinct construction...

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The imputability of the authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal interest protected by the norm that is infringed and the necessity for that protection to be genuinely effective [...].

The respondent has invoked various arguments to justify the absence of culpability in their conduct. The decision to archive a sanctioning file may be based on the absence of the element of culpability when the responsible party for the unlawful conduct has acted with all the diligence that the circumstances of the case require.

In compliance with the principle of culpability, the AEPD has agreed on numerous occasions to archive sanctioning procedures in which the element of culpability of the infringing subject was absent. Cases in which, despite the existence of unlawful behavior, it had been established that the responsible party had acted with all the diligence that was required, and therefore no fault was perceived in their conduct. This has been the criterion maintained by the Administrative Litigation Chamber, Section 1, of the National Court. The following rulings can be cited as particularly clarifying:

- SAN of April 26, 2002 (Rec. 895/2009) states:

"Indeed, one cannot assert the existence of culpability based on the outcome, and this is what the Agency does by claiming that since the security measures did not prevent the outcome, there is culpability. Far from this, what should be done and is lacking in the Resolution is to analyze the sufficiency of the measures from the parameters of average diligence required in the data traffic market. For if one acts with full diligence, scrupulously fulfilling the duties derived from diligent action, one cannot affirm or presume the existence of any fault."

- SAN of April 29, 2010, Legal Basis six, which, regarding fraudulent contracting, indicates that "The issue is not to determine whether the appellant processed the personal data of the complainant without their consent, but whether they employed reasonable diligence when trying to identify the person with whom they entered into the contract."

At this point, it is worth recalling once again what the STC 246/1991 has stated regarding the culpability of the legal entity: that it does not lack the "capacity to infringe the norms to which they are subject." "Capacity for infringement [...] that derives from the legal interest protected by the norm that is infringed and the necessity for that protection to be genuinely effective [...]"

In connection with the above, it is necessary to refer to Article 5.2 of the GDPR (principle of proactive responsibility), according to which the data controller shall be responsible for compliance with the provisions of paragraph 1 - for what is relevant here, the principle of lawfulness in relation to Article 6.1 of the GDPR - and capable of demonstrating their compliance. The principle of proactivity transfers to the data controller the responsibility for compliance.

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treatment the obligation not only to comply with the regulations but also to be able to demonstrate such compliance.

The Opinion 3/2010, from the Article 29 Working Party (WP29) - WP 173 - issued during the validity of the repealed Directive 95/46/EC, but whose reflections are applicable today, states that the "essence" of proactive responsibility is the obligation of the data controller to apply measures that, under normal circumstances, ensure that the data protection rules are complied with in the context of processing operations and to have available documents that demonstrate to data subjects and supervisory authorities what measures have been adopted to achieve compliance with data protection regulations. Article 5.2 is developed in Article 24 of the GDPR, which obliges the controller to adopt appropriate technical and organizational measures "to ensure and be able to demonstrate" that the processing is in accordance with the GDPR. The provision establishes:

"Responsibility of the data controller"

"1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated as necessary.

2. When appropriate in relation to the processing activities, the measures mentioned in paragraph 1 shall include the implementation, by the data controller, of appropriate data protection policies.

3. Adherence to approved codes of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as elements to demonstrate compliance with the obligations of the data controller."

Article 25 of the GDPR, "Data protection by design and by default," establishes:

"1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of data subjects.

2. [...]"

The ruling SAN of October 17, 2007 (Rec. 63/2006) is fully applicable to the case, which, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, states: "[...] the Supreme Court has understood that

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There is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, particular attention must be given to the professionalism or lack thereof of the individual, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it is essential to emphasize the rigor and exquisite care required to comply with the legal provisions in this regard."

As noted in the SAN of September 19, 2023 (Rec. 403/2021), "the insurance policy was contracted with a third party without sufficient control or supervision, as it was unable to detect that the person expressing their intention to contract was not who they claimed to be. Had the necessary precautions been taken to ensure the identity of the contracting party (which would have been sufficient to address the incorrect responses to the identification and verification questions of the client)."

III

Typification and Qualification of the Infraction

The infraction is typified in Article 83.5 of the GDPR, which considers as such:

"5. The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9."

The LOPDGD, for the purposes of the prescription of the infraction, qualifies in its Article 72.1 as a very serious infraction, with a prescription period of three years in this case, "b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

IV

Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive."

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall

be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
 - b) the intentionality or negligence in the infringement;
 - c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;
 - d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
 - e) any previous infringements committed by the data controller or processor;
 - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
 - j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42, and
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the offender's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.”

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- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In accordance with the transcribed provisions for the purpose of determining the amount of the fine to be imposed on the respondent, as responsible for an infringement classified under article 83.5.a) of the GDPR, the following factors are deemed concurrent:

- The evident link between the business activity of the respondent and the processing of personal data of clients or third parties (article 83.2.k of the GDPR in relation to article 76.2.b of the LOPDGDD).

The Judgment of the National Court of 17/10/2007 (rec. 63/2006), which, regarding entities whose activity involves continuous processing of client data, indicates that “...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant

handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard.”

The respondent has opposed in its allegations the application of this aggravating factor.

Also in this case, the arguments of the respondent must be rejected:

A significant circumstance in the examined case is the telephone contract to which the respondent would have modified the ownership and consequently the change of tariff.

The business activity of the respondent necessarily involves the processing of personal data. This characteristic of its business activity impacts, reinforcing it, on the diligence that must be exercised in compliance with the principles governing the processing of personal data and on the quality and effectiveness of the technical and organizational measures that must be implemented to ensure respect for the fundamental right.

The respondent states: “On the other hand, regarding the consideration of ‘the severity of the infringement taking into account the scope of the processing operation, a circumstance provided for in article 83.2.a) GDPR’ as an aggravating factor, the sanction would also not be individualized to the specific case. A sanction is being imposed...”

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a sanction taking into account a massive data processing when it is speaking solely and exclusively of a specific and exceptional case, which lacks all logic.”

Well, this aggravating factor does not apply to the respondent, as it does not appear in the Initiation Agreement, nor in the Proposal for Resolution, nor in this Resolution; therefore, it is not appropriate to make any statement regarding this allegation.

As a mitigating circumstance, the one provided for in Article 83.2.c) of the GDPR is taken into consideration: “any measures taken by the controller or processor to mitigate the damages suffered by the data subjects.”

The respondent proceeded to effectively resolve the incident that is the subject of the complaint.

None of the mitigating factors invoked by the respondent are accepted in this proposal.

In fulfilling its legal obligations - as far as the principle of lawfulness is concerned - the respondent must act with the diligence that the circumstances of the case require and is obliged to adopt the technical and organizational measures that allow it to comply with and be able to demonstrate compliance with the principles of data protection.

Regarding the degree of diligence that the data controller is obliged to exercise, it is worth citing the judgment of the National Court, Administrative Litigation Chamber, of October 17, 2007 (Rec. 63/2006), which states that “...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard.”

Regarding the alleged lack of intent or negligence, we refer to the considerations made about the concurrence of the element of culpability, specified in a serious lack of diligence.

On the non-existence of benefits obtained (Article 76.2.c) of the LOPDGDD, in connection with Article 83.2.k) of the LOPDGDD), we emphasize that this circumstance can only operate as an aggravating factor and not as a mitigating factor.

Article 83.2.k) of the GDPR refers to “any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.” And Article 76.2.c) of the LOPDGDD states that “2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account: [...] c) The benefits obtained as a result of the commission of the infringement.” Both

provisions

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They mention as a factor that may be taken into account in the graduation of the sanction the “benefits” obtained, but not the “absence” of these, which is what TME alleges. Furthermore, according to Article 83.1 of the GDPR, the imposition of monetary sanctions is governed by the following principles: they must be individualized for each particular case, be effective, proportionate, and dissuasive. Allowing the absence of benefits to operate as a mitigating factor is contrary to the spirit of Article 83.1 of the GDPR and to the principles that govern the determination of the amount of the monetary sanction. If, as a result of the commission of a GDPR infringement, the fact that no benefits have existed is qualified as a mitigating factor, leading to a reduction in the amount of the sanction, the dissuasive purpose of the sanction is partially nullified.

The Administrative Litigation Chamber of the National Court has warned that the fact that in a specific case not all the elements that comprise a modifying circumstance of liability, which by its nature is aggravating, are present, cannot lead to the conclusion that such circumstance is applicable as a mitigating factor. The ruling made by the National Court in its SAN of May 5, 2021 (Rec. 1437/2020) -even though that resolution deals with the circumstance of section e) of Article 83.2 of the GDPR, the commission of previous infringements- is extrapolable to the issue raised, the claim of the respondent that the “absence” of benefits be accepted as a mitigating factor, given that both the GDPR and the LOPDGDD refer only to “the benefits obtained”:

It is appropriate to graduate the sanction to be imposed on the respondent and set it at the amount of €70,000 for the infringement of Article 83.5 a) GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on TELEFÓNICA MÓVILES ESPAÑA, S.A.U., with NIF A78923125, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 70,000 euros (seventy thousand euros).

SECOND: TO NOTIFY this resolution to TELEFÓNICA MÓVILES ESPAÑA, S.A.U.

THIRD: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at C/ Jorge Juan, 6

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the banking entity CAIXABANK, S.A. Otherwise, it will proceed to its collection in the executive period. Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or

the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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